



E Roz <evanroz@gmail.com>

Re: 10-585 Corydon - unit renovations1 message

Evan Rosner <evanroz@gmail.com> Fri, Jan 12, 2024 at 3:59 PM

To: Dasha Dorofeeva <Dasha.Dorofeeva@thorwin.ca>

Cc: Grant Steele <grant.steele@thorwin.ca>, Emma Pinpin
<Emma.Pinpin@thorwin.ca>

Good afternoon,

Thank you for accepting my first proposal; I am very impressed that you have chosen to follow the legislative process in respect of tenant rights and governmental regulations. I know that (and Emma can attest to this) Kris Thorkelson corporations have had difficulties in respecting and following regulatory authority protocol historically and this is a step in the right direction for establishing good business practices. And congratulations to Kris for having his pharmacist license reinstated despite strong industry outcry.

I know that ethical decision making can be very challenging for landlords and that the political climate has allowed for Thorwin Properties to operate as it has. It is unfortunate that your errors have resulted in Thorwin Properties losing revenue and being behind timeline but this is a reality that could have been avoided with regulatory compliance, respect for tenant rights, and communication in good faith.

I appreciate your concerns but I have alternatives that are not expensive and in fact very convenient. I do expect further applications for rent increases above the guidelines but I believe you will find that this year it will be much more difficult for you to successfully persuade the RTB and the RTC that your rent increase above the guidelines proposals are justifiable.

I would like to extend a final proposal for your consideration. I have

altered the wording of the conditional rent discount proposal to be more palatable for you.

If I agree to the proposal of renovations stated in your email on Friday, Jan 5, 2024 that would begin on January 22 and end on February 2, 2024 then the following updated agreement will be honoured:

"The landlord would like to propose a conditional rent discount for month by month in the amount of \$500.00 to compensate for affecting the tenant's quality of living. The proposed tenancy agreement and rent discount will begin January 1, 2024 and terminate January 1, 2026. The agreement can only be terminated prior to Jan 1, 2026 through mutual agreement between the tenant and landlord. Failure to pay rent on time for three instances will result in the termination of the conditional rent agreement."

In addition to the agreement to rent discount, the following will be provided to the tenant:

- 1. An additional discount for January rent in the amount of \$375.00 to compensate for affecting your quality of living on Day 1-8.*
- 2. Purchase and installation of a storage unit in 10-585 Corydon Ave based on the tenants discretion and fulfilled by Thorwin Properties of no more than \$450 value after tax prior to April 30, 2024.*

All the best,
Evan Rosner

On Wed, Jan 10, 2024 at 3:51 PM Dasha Dorofeeva
<Dasha.Dorofeeva@thorwin.ca> wrote:

Hello Evan,

We have carefully reviewed your proposal. I regret to inform that your counteroffer was declined.

We decided to cancel renovations in your apartment. Please rest assured there will be no entry.

Thorwin applied to RTB for the reduction of service for your tenancy. It means that communal laundry machines and your storage locker will be removed permanently on May 1, 2024, and there will be no alternative provided. RTB will determine the amount of discount to be added to your monthly rent until the end of current lease only.

RTB may be helping you to reduce your rent a little because of reduction of service, but in a long run, I think it will be more expensive and inconvenient to take laundry elsewhere. Refusing renovations does not affect our future application to RTB for increase to the basic rent, and you may still anticipate further rent increase for your next renewal according to market. The only difference, you will have no in-suite laundry.

We still want to extend our offer for January rent discount until Monday January 15th 9:00 if you change your mind.

Sincerely,

Dasha Dorofeeva

Property Manager



E-mail: Dasha.Dorofeeva@thorwin.ca

Direct: 204-594-5410

Office: 204-222-2422

www.thorwin.ca

1274 Archibald Street, Winnipeg, Manitoba, R2J 0Z3

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From: Evan Rosner <evanroz@gmail.com>

Sent: Tuesday, January 9, 2024 1:25 PM

To: Dasha Dorofeeva <Dasha.Dorofeeva@thorwin.ca>

Cc: Grant Steele <grant.steele@thorwin.ca>

Subject: Re: 10-585 Corydon - unit renovations **revised**

Good afternoon,

I appreciate your offer and I am willing to negotiate with you.

The major issue that Thorwin Properties faces is not following protocol stated by the RTB. I have not received Form 8 (Notice to Tenant – Reduction/Withdrawal of Service) related to the withdrawal of the laundry service and storage unit. I had inquired about the plans on July 7, 2023 to Darren Wilcox and Thorwin Properties has had the opportunity to file the required forms since and before then but I did not receive a response. Non-compliance by Thorwin Properties to Manitoba legislation will lead to financial loss due to undone due diligence and failure to follow protocol.

I have stated several times that I do not want the renovations proposed as the services are included in my original Lease Agreement with Winpark Dorchester and these services are grandfathered into my current lease with Thorwin Properties as stated by Property Manager Celena Funk on Friday, May 5, 2023. She also stated, "The Mobile Resident Manager was unaware that your storage locker had been grandfathered in prior to Thorwin Properties purchase of the building. Should at any time we decide to remove the storage units we will apply through the Residential Tenancy Branch for a withdrawal of service."

The RTB has provided me with alternative information from what you have presented to me - Form 9 must be completed by the landlord. Can you tell me the name of the individual you have consulted with at the RTB in regards to protocol?

My counter proposals are as follows:

1. Thorwin Properties follows protocol and applies with Form 9 to the RTB and I receive Form 8. There is a reasonable expectation that renovation delivery will be 3 months from application date. Following receipt of Form 8 we would then negotiate based on the changes of services approved by the RTB.

OR

2. If I agree to the proposal of renovations stated in your email on Friday, Jan 5, 2024 that would begin on January 22 and end on February 2, 2024 then the following updated agreement will be honoured:

"The landlord would like to propose a conditional rent discount for month by month in the amount of \$500.00 to compensate for affecting the tenant's quality of living and mental health. The proposed tenancy agreement and rent discount will be indefinite and will be applied January 1, 2024 and can only be terminated through mutual agreement between tenant and landlord. Failure to pay rent on time for three instances will result in the termination of the conditional rent agreement."

In addition to the agreement to rent discount, the following will be provided to the tenant:

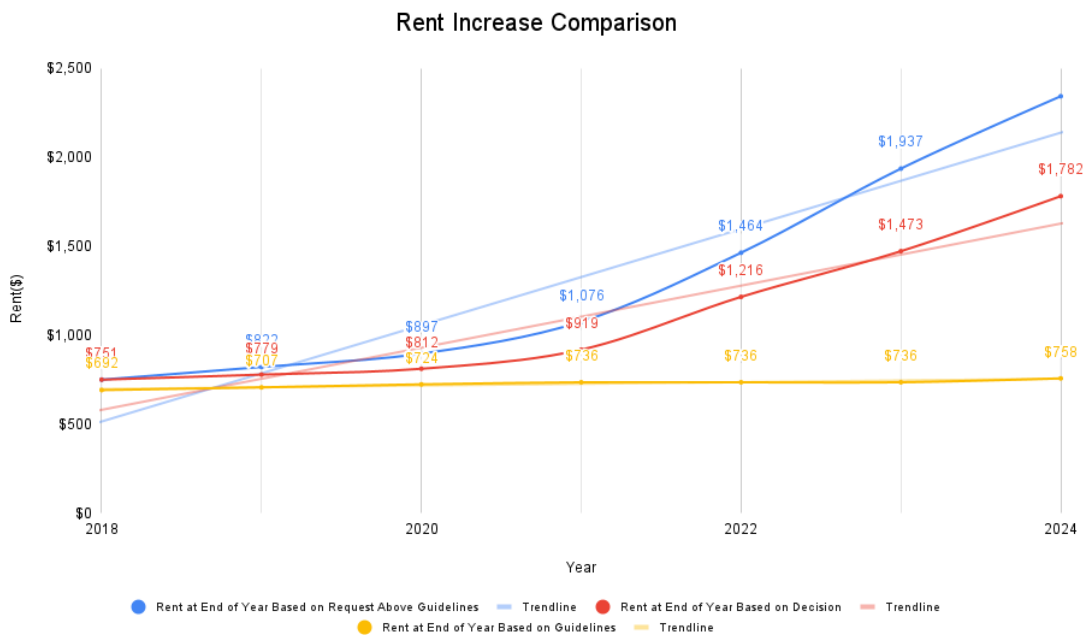
1. An additional discount for January rent in the amount of \$375.00 to compensate for affecting your quality of living on Day 1-8,
2. 24/7 access to 3-585 Corydon Ave from January 22, 2024 - February 2, 2024,
3. Purchase and installation of storage unit in 10-585 Corydon Ave based on the tenants discretion and fulfilled by Thorwin Properties of no more than \$500 value after tax.

You mentioned that you believe that rent increase is the issue and I have attached a chart illustrating the issue.

I look forward to hearing back from you.

All the best,

Evan Rosner



On Tue, Jan 9, 2024 at 11:47 AM Dasha Dorofeeva
<Dasha.Dorofeeva@thorwin.ca> wrote:

Hi Evan,

I didn't hear from you yet. Can we know about your decision on our offer for rent discount and relocation for Days 1-3 by 9:00am tomorrow or sooner?

Sincerely,

Dasha Dorofeeva

Property Manager



E-mail: Dasha.Dorofeeva@thorwin.ca

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From: Dasha Dorofeeva <Dasha.Dorofeeva@thorwin.ca>
Sent: Monday, January 8, 2024 6:23 PM
To: Evan Rosner <evanroz@gmail.com>
Cc: Grant Steele <grant.steele@thorwin.ca>
Subject: Re: 10-585 Corydon - unit renovations **revised**

Hello Evan,

In reading your email, I understood that rent price is the issue.

I'd like to further advise you that I spoke with RTB today and they provided guidance on applications to reduction of service, and they concluded that forms 9 and 8 are not required for our project.

The renovation will be scheduled as planned, and I will be sending you official notice of entry as soon as possible.

The rent price for your apartment will be increased as planned and per our agreement. RTB approved this increase. We can discuss early termination of lease if the rent increase does not meet your expectations.

Meanwhile, our offer for one-time rent discount for January is still standing. In addition, I was able to get approval from the management to provide you with a free place for Days 1-3. It would be one of our short term rentals if you accept.

I think it's a generous offer and shows that your landlord cares about your comfort while also improving apartment features without additional rent increases.

Sincerely,

Dasha Dorofeeva

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From: Evan Rosner <evanroz@gmail.com>

Sent: Monday, January 8, 2024 3:53 PM

To: Dasha Dorofeeva <Dasha.Dorofeeva@thorwin.ca>

Cc: Grant Steele <grant.steele@thorwin.ca>

Subject: Re: 10-585 Corydon - unit renovations **revised**

Greetings,

I appreciate your offers but I'm concerned that legislative protocols have not been followed as in Section 13 Rent Regulation and Sub-Section 13.14 Withdrawal/Reduction of a Service.

The RTB has not received Form 9 (Application to Fix Value of Permanent Reduction or Withdrawal of Service) from Thorwin Properties and I have not received Form 8 (Notice to Tenant – Permanent Reduction or Withdrawal of Service (Other than a tenant services reduction or withdrawal)).

I hold evidence that both storage unit and laundry services were provided to me by Winpark Dorchester in my initial lease agreement and Thorwin Properties has confirmed to me that these services were grandfathered into my lease agreement.

I've been a tenant at 585 Corydon Ave for 11 years since May 2012 when I paid \$625. This price included the storage unit and laundry services. There have been no renovations or services that have improved my quality of life or brought greater value or benefit to this tenant. If the rent increases followed the rent guidelines then the monthly rent in 2023 would be \$725.17, a fair price for value.

I understand that Thorwin Properties is keen to begin their renovations but non-compliance with legislative protocol is a serious issue with serious consequences.

If Thorwin Properties would like to keep me as a tenant and continue its plan for further renovations then it should open itself to good faith negotiation with me for a conditional rent discount that will reduce the rent to fair levels and then we can discuss renovations that replace the services withdrawn.

Thank you for your time,

Evan Rosner

On Mon, Jan 8, 2024 at 2:03 PM Dasha Dorofeeva
<Dasha.Dorofeeva@thorwin.ca> wrote:

Hi Evan,

I contacted RTB today. They don't offer to contact resident on behalf of Landlord. Is there anything else that we can do to convince you that this renovation will improve your quality of life in the apartment? I think we can further increase rent discount for January rent? We could already start looking for a wardrobe to put into your apartment as well.

Sincerely,

Dasha Dorofeeva

Property Manager



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From: Dasha Dorofeeva <Dasha.dorofeeva@thorwin.ca>

Sent: Monday, January 8, 2024 12:34 PM

To: Evan Rosner <evanroz@gmail.com>

Cc: Grant Steele <grant.steele@thorwin.ca>

Subject: RE: 10-585 Corydon - unit renovations **revised**

Its not possible, but I will ask someone from RTB to call you today to confirm that your rights are not violated.

Sincerely,

Dasha Dorofeeva

Property Manager



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From: Evan Rosner <evanroz@gmail.com>

Sent: Monday, January 8, 2024 12:29 PM

To: Dasha Dorofeeva <Dasha.dorofeeva@thorwin.ca>

Cc: Grant Steele <grant.steele@thorwin.ca>

Subject: Re: 10-585 Corydon - unit renovations **revised**

Greetings,

Email correspondence is preferred.

I do not agree with your claim and would like to see the documentation that supports your claim.

Are you speaking on behalf of the policies of the now defunct Winpark Dorchester who was the landlord previous to Myplace reality?

Thank you,

Evan

On Mon, Jan 8, 2024 at 12:17 PM Dasha Dorofeeva <Dasha.Dorofeeva@thorwin.ca> wrote:

Hello Evan,

I'm planning to call you this afternoon, but please feel free to contact me as well to discuss any questions you may have about the renovations.

Please rest assured that our renovations do not violate tenant rights, and our plans will not result in withdrawal of services. Every apartment will have in-suite laundry thus it's an upgrade to laundry service and not elimination. Storage is not a service in the building. The space was never advertised as facility, and it was used by residents at their own risk and did not cost anything for a long time as a courtesy of landlord.

In-suite storage: we made you an offer: *After the renovations, we will determine how may square feet of storage space was lost and discuss any reasonable options for replacement.*

Sincerely,

Dasha Dorofeeva

Property Manager



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From: Evan Rosner <evanroz@gmail.com>

Sent: Monday, January 8, 2024 7:26 AM

To: Dasha Dorofeeva <Dasha.Dorofeeva@thorwin.ca>

Cc: Grant Steele <grant.steele@thorwin.ca>

Subject: Re: 10-585 Corydon - unit renovations **revised**

Good morning,

I'm in the process of reviewing the logistics required for these renovations and I have some questions but I've recently confirmed that I'm COVID+ as of today and despite up to date vaccinations and boosters I am quite ill. I'm hoping that the symptoms are less severe over the next few days and I can get back to you in more detail. It would be prudent to push back the renovations for at least a week to ensure that the workers do not contract the virus from me and my environment.

I would appreciate that you provide me with a week for which to receive the notice of entry document.

Thank you,

Evan

On Fri, Jan 5, 2024 at 12:36 PM Dasha Dorofeeva
<Dasha.Dorofeeva@thorwin.ca> wrote:

Hi Evan,

We received proposed dates for laundry renovations in unit #10: January 22 – February 2, 2024. We plan to deliver Notice

of entry on Monday January 8th.

I am writing to discuss further your concerns about quality of living during renovations and reduced storage space. Its my hope that we can reach an agreement for compensation and receive your approval for entry. Please review our offer below and respond with your decision as soon as possible.

We'd like to propose a discount for January rent in the amount of \$187.00 to compensate for affecting your quality of living on Day 1-8. After the renovations, we will determine how may square feet of storage space was lost and discuss any reasonable options. Please be advised that for the duration of work, we put aside a vacant unit #3, and it is available to you 24/7 for any of your needs. You can reach your resident manager for keys.

Daily breakdown of work:

Laundry machines will be installed inside hallway closet next to bedroom. It will be made deeper, and it will extend slightly inside bedroom closet.

We will need access to the bedroom, hallway, and washroom consistently throughout renovation: we will open hallway floor and connect machines to washroom plumbing.

Tenant will be required to remove all items from bedroom closet and washroom floors.

Please take steps to protect your personal things inside apartment from construction dust. We recommend covering furniture. There will be a few water shutdowns for a short period of time.

Day 1: Make hallway closet larger into bedroom side of closet. Open floor and prep for plumbing installation. Build bulkhead in bedroom to cover exhaust vent temporary; cover floors so it is safe for the night.

Day 2: Remove toilet and finish opening floors for plumber. Electrical rough in to closet, temporary cover floors back up for the night. Toilet will remain off.

Day 3: Fix floors and install vinyl plank in hallway and bathroom. Reinstall toilet; Drywall new walls and first coat of tape.

Day 4: Finish any left-over flooring, install baseboards in hallway, mud, and tape new drywall.

Day 5: Mud and tape new drywall, finish up remaining work to prep for paint.

Day 6: Paint

Day 7: Paint/ finish up baseboards install laundry machines.

Day 8: Miscellaneous repairs and cleaning.

Sincerely,

Dasha Dorofeeva

Property Manager



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From: Dasha Dorofeeva
Sent: Friday, January 5, 2024 12:34 PM
To: 'Evan Rosner' <evanroz@gmail.com>; Grant Steele <grant.steele@thorwin.ca>
Subject: RE: 10-585 Corydon - unit renovations

Hi Evan,

We received proposed dates for laundry renovations in unit #10: January 22 – February 2, 2024. We plan to deliver Notice of entry on Monday January 8th.

I am writing to discuss further your concerns about quality of living during renovations and reduced storage space. Its my hope that we can reach an agreement for compensation and receive your approval for entry. Please review our offer below and respond with your decision as soon as possible.

We'd like to propose a discount for January rent in the amount of \$187.00 to compensate for affecting your quality of living on Day 1-8. After the renovations, we will determine how may square feet of storage space was lost and discuss any reasonable options. Please be advised that for the duration of work, we put aside a vacant unit #3, and it is available to you 24/7 for any of your needs. You can reach your resident manager for keys.

Daily breakdown of work:

Laundry machines will be installed inside hallway closet next to bedroom. It will be made deeper, and it will extend slightly inside bedroom closet.

We will need access to the bedroom, hallway, and washroom consistently throughout renovation: we will open the wall adjoining to kitchen and connect machines to kitchen plumbing.

Tenant will be required to remove all items from bedroom closet and washroom floors.

Please take steps to protect your personal things inside apartment from construction dust. We recommend covering furniture. There will be a few water shutdowns for a short period of time.

Day 1: Make hallway closet larger into bedroom side of closet. Open floor and prep for plumbing installation. Build bulkhead in bedroom to cover exhaust vent temporary; cover floors so it is safe for the night.

Day 2: Remove toilet and finish opening floors for plumber. Electrical rough in to closet, temporary cover floors back up for the night. Toilet will remain off.

Day 3: Fix floors and install vinyl plank in hallway and bathroom. Reinstall toilet; Drywall new walls and first coat of tape.

Day 4: Finish any left-over flooring, install baseboards in hallway, mud, and tape new drywall.

Day 5: Mud and tape new drywall, finish up remaining work to prep for paint.

Day 6: Paint

Day 7: Paint/ finish up baseboards install laundry machines.

Day 8: Miscellaneous repairs and cleaning.

Sincerely,

Dasha Dorofeeva

Property Manager



E-mail: Dasha.Dorofeeva@thorwin.ca

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From: Dasha Dorofeeva <Dasha.dorofeeva@thorwin.ca>

Sent: Tuesday, December 12, 2023 1:42 PM

To: Evan Rosner <evanroz@gmail.com>

Subject: RE: 10-585 Corydon - unit renovations

Hello Evan,

I spoke with RTB agent today about tenant and landlord rights.
We will resume discussing this project after the holidays.

Sincerely,

Dasha Dorofeeva

Property Manager



E-mail: Dasha.Dorofeeva@thorwin.ca

Direct: 204-594-5410

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From: Evan Rosner <evanroz@gmail.com>

Sent: Tuesday, December 12, 2023 12:59 PM

To: Dasha Dorofeeva <Dasha.dorofeeva@thorwin.ca>

Subject: Re: 10-585 Corydon - unit renovations

Good morning,

Have you any updates for me?

Thank you,

Evan

On Tue, Nov 21, 2023 at 9:23 AM Dasha Dorofeeva
<Dasha.dorofeeva@thorwin.ca> wrote:

Hello Evan,

We also work closely with RTB to ensure our residents' rights are protected during renovations. Please let me know if RTB says anything different.

We've been talking about doing this project in early January. The project is in planning stage, and we will keep you updated on the requested information as it comes.

Sincerely,

Dasha Dorofeeva

Property Manager



E-mail: Dasha.Dorofeeva@thorwin.ca

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From: Evan Rosner <evanroz@gmail.com>

Sent: Friday, November 17, 2023 3:49 PM

To: Dasha Dorofeeva <Dasha.dorofeeva@thorwin.ca>

Cc: Carol Patterson <carol.patterson@thorwin.ca>; Grant Steele <grant.steele@thorwin.ca>

Subject: Re: 10-585 Corydon - unit renovations

Hello,

Please do not begin any operation until I have conferred with the Residential Tenancies Branch and follow their process for

arbitration.

The proposed actions of Thorwin Properties are unwanted, unethical, and I will escalate our dispute in order to identify and preserve my rights as legislated in the Residential Tenancies Act.

What is the location of the apartment that you have suggested?

What is your proposed timeline for renovations?

Please list ALL of the renovations that you have planned for this suite.

I appreciate your time and your services.

All the best,

Evan Rosner

10-[585 Corydon Ave](#)

On Fri, Nov 17, 2023 at 3:22 PM Dasha Dorofeeva
<Dasha.dorofeeva@thorwin.ca> wrote:

Hi Evan,

Thank you for letting me know about your concerns regarding our plans for renovations. It is going to be uncomfortable, and it won't look pretty for just the two weeks, however, in the end, I am almost certain that you will notice the value and feel happy about in-suite laundry. In addition, we put aside a vacant apartment, and you will be able to use it at any time until your apartment is fully put back together.

Sincerely,

Dasha Dorofeeva

Property Manager



E-mail: Dasha.Dorofeeva@thorwin.ca

Direct: 204-594-5410

Office: 204-222-2422

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From: Evan Rosner <evanroz@gmail.com>
Sent: Monday, November 13, 2023 10:22 AM
To: Dasha Dorofeeva <Dasha.dorofeeva@thorwin.ca>
Subject: Fwd: Laundry Services at [585 Corydon Ave](#)

Good morning Dasha,

I have been expecting a response from Darren Willcox for several months and I have just learned he was let go. I have questions and concerns about Thorwin's plan for my suite.

Thank you,

Evan

----- Forwarded message -----

From: **Evan Rosner** <evanroz@gmail.com>
Date: Mon, Nov 13, 2023 at 10:13 AM
Subject: Re: Laundry Services at [585 Corydon Ave](#)
To: Darren Wilcox <Darren.Wilcox@myplace.ca>

Greetings,

I hope you're doing well.

Last Friday Thorwin agents came to my suite to identify a solution for the upcoming removal of laundry services and storage facilities with the goal of installing en suite laundry machines.

It has been 129 days since my previous email to you regarding this issue and I have not received any clarity on what your plan is.

The electrical system in my suite is from the 1950s, there is no storage space for a washer/dryer in the suite, and if there were some space with which to place the units it would require opening up the floor boards and extending the pipes.

My understanding is that Thorwin has full intention of removing the storage and laundry services, which I have paid for in my entire residency here, forcing a renovation on me that will negatively affect my quality of living through the day to day work, reducing my storage space capabilities, and of course, increasing the rent far above what it should be if provincial guidelines were followed in good faith.

I want to be clear that I do not want en suite laundry services and I do not want my storage space removed.

I look forward to hearing your solutions.

Thank you,

Evan Rosner

10-[585 Corydon Ave](#)

On Fri, Jul 7, 2023 at 12:20 PM Evan Rosner
<evanroz@gmail.com> wrote:

Greetings,

I'm looking for clarification of laundry services for this year. I expect the laundry and storage facilities to be removed. I would like to know what you have in mind for me as I have signed our renewal, the electrical system and plumbing system in my suite will not be able to handle on suite laundry services, and I require storage space.

Keeping in mind that I have been a long term resident in good standing I would appreciate some consideration in this matter.

Thank you,

Evan Rosner